VENDOR SERVICE CONTRACT

Pelican Prairie Market Lofts | Cleveland, OH

Owner	Pelican Prairie Market Lofts Owner LLC
Contractor	Apex Elevator Service
Services	elevator maintenance
Property	Pelican Prairie Market Lofts
Effective Date	August 25, 2026

1. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform elevator maintenance at Pelican Prairie Market Lofts in accordance with the specifications attached hereto. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

2. Term and Termination. This Contract commences on the Effective Date for a term of 5 months and may be terminated by either party on thirty days' written notice. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

3. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

4. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

5. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

6. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

7. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only